

2.	Salinas vs. Bazoft Automotive 23-01352644	Motion to Be Relieved as Counsel of Record The motions by Anthony Chavos, Laurie Rau, Chavos & Rau APLC, to withdraw as counsel for defendants Bazoft Automotive d/b/a South Coast Mitsubishi, Nissan Extended Service Corporation, Inc., and Sentry Select Insurance Company, are DENIED WITHOUT PREJUDICE. The original hearings on the instant motions were continued on 3-19-26, as moving counsel’s original declarations did not sufficiently state grounds for withdrawal, and the originally provided proposed orders were blank. (ROA 130 [3-19-26 minute order].) Moving counsel were ordered to file and serve any supplemental papers by 5-1-26, including supplemental declarations and “completed proposed orders.” (<i>Id.</i>) The supplemental papers were eventually filed and served on 5-4-26. Moving counsel’s supplemental declarations (ROA 136, 137, 139) now sufficiently state grounds for withdrawal. However, the new proposed orders (ROA 141, 142, 143) are still incomplete; ¶¶ 2, 3, 5, and 6 are still blank. In particular, ¶ 6 is necessary in order for the parties to have proper addresses for service on the clients in the future, if withdrawal is granted. (Cal. Rules of Court, Rule 3.1362, subds. (d), (e) [proposed order required].) As moving counsel failed to timely and properly comply with the court’s prior order, the motions are DENIED WITHOUT PREJUDICE. Clerk shall give notice.
3.	Guzman-Leal vs. General Motors, LLC 23-01357484	Motion for Attorney Fees Plaintiff’s Motion for Attorney fees is GRANTED. Defendant General Motors, LLC shall pay <u>\$36,671.50</u> in reasonable attorney fees and <u>\$4,298.15</u> in costs and expenses to Plaintiff. (See Code Civ. Proc., §1033.5, subd. (a)(10)(B) [statutory attorney fees]; Civ. Code §1794, subd. (d) [Song-Beverly attorney fees]; <i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095-1096 [lodestar; trial court’s discretion]; <i>Reynolds v. Ford Motor Company</i> (2020) 47 Cal.App.5th 1105, 1112 [same]; Wood Decl. ¶¶ 7-11 [description of services performed]; 12-20 [justification for hourly rates sought], 22-23 [timekeeping procedures]; and Ex. 6 [timekeeping records].)

The attorney fee award consists of the reasonably expended hours of work at the reasonable hourly rates sought by the following timekeepers: NOTE: The below INCLUDES the time spent preparing the reply brief and preparing for the hearing.

<u>Timekeeper</u>	<u>Role</u>	<u>Rate</u>	<u>Hours</u>	<u>Total</u>
Jessica Anvar	Senior Partner	\$595	0.3	\$178.50
Carey Wood	Senior Partner	\$560	55.4	\$31,024.00
Sean Crandall	Partner	\$530	0.7	\$371.00
Bobby C. Walker	Associate	\$440	3.6	\$1,584.00
Laura Schwartz	Associate	\$430	2.8	\$1,204.00
Jessica Caro	Paralegal	\$100	1.7	\$170.00
Robert Aguilar	Paralegal	\$100	12.6	\$1,260.00
Elaine Astroga	Paralegal	\$100	6.1	\$610.00
Silvia Martinez	Paralegal	\$100	1.8	\$180.00
Isabel Garcia	Paralegal	\$100	0.9	\$90.00

85.9 \$36,671.50

Plaintiff has adequately established a basis for the reasonableness of the hourly fees requested for the attorney timekeepers by providing evidence of each timekeeper's experience and qualifications and reference to rates charged by other lemon law attorneys in the Orange County market. Plaintiffs have sufficiently established that the requested hourly rates of counsel are reasonable and commensurate with what other similarly tenured and experienced attorneys could charge in the Orange County market.

Plaintiff has not provided any facts that justify the requested \$215 hourly rate for the team of litigation paralegals who participated in this case. The Court reduces the hourly rate for each paralegal timekeeper to \$100/hour which the court finds to be commensurate with a reasonable hourly rate for basic litigation paralegal work in this market.

Additionally, the court has reviewed the timekeeping records provided and finds that the hours claimed were reasonably incurred.

Defendant's opposition does not show that the claimed hourly rates or hours spent are unreasonable. Defendant argues that Plaintiff's counsel has adapted work product that has been used in other similar

		cases, but it appears to this Court from Moving Party’s time records that the number of hours spent litigating this matter take into account the efficiencies of adapting prior applicable work product to the litigation of this case. The court declines to award a multiplier. (See <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1138 [trial court discretion to award multiplier].) This was a standard lemon law case. Counsel’s skill and contingency risk are reflected in the reasonable hourly rates described above. The OSC re: Dismissal (Settled Case) currently scheduled for June 8, 2026, in Department C65 is CONTINUED to Monday August 10, 2026, at 1:30 pm. in Department C65. This continuance is to allow time for the attorney’s fees ordered in this ruling to be paid. Plaintiff shall give notice of this ruling.
4.	Armstrong Cal Builders, Inc. vs. Trinity Fence Company 25-01481008	Motion - Other (Declaration of Rights to Withheld Funds, Under Cal. Civ. Code § 9408) Plaintiff Armstrong Cal Builders, Inc.’s petition for order declaring the respective parties’ rights as to a stop notice in dispute or reducing the amount of the stop notice and the amounts withheld from a stop notice that was served by Respondent Trinity Fence Company is denied without prejudice on procedural grounds. Although the “petition” acknowledges the hearing must be held within 15 days of the filing of the petition (see petition, page 8, line 20), Armstrong made no effort to obtain a hearing within that time frame. The court’s record indicates the current hearing date of May 22, 2026, was assigned without objection by Armstrong. There was no ex parte application or any other effort to obtain a hearing within the statutory time limitation of 15 days. Furthermore, the Court is not satisfied on the present record that the withheld stop-payment notice funds should be released or reduced through this summary procedure. Material, factual and procedural disputes remain. These include issues related to service of the affidavit, timeliness of the counter-affidavit, the operative pleadings required by Civil Code section 9410, payments allegedly made to or on behalf of Trinity, disputed back charges, and the reasonable value of Trinity’s work. These issues are not sufficiently and firmly